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STAFF REPORT

Date: **November 6, 2026**

To: Policy Committee

From: Emily Courtnage, Senior Legal Counsel
Dr. Kimberlee Armstrong, Superintendent

Subject: **Proposed Policy Revision: 4.50.030-P Complaint Policy**

BACKGROUND AND ANALYSIS

Minor updates are needed to PPS's Complaint Policy, 4.50.030-P, to comport with recent guidance PPS received from Oregon Department of Education staff. Specifically, ODE staff clarified that Division 22 complaints concern district-wide practices and do not include individual complaints about discrimination or bias, restraint and seclusion, or retaliation. Rather, those individual complaints fall under separate Oregon Administrative Rules or statutes. Accordingly, this policy revision clarifies those district-wide or systemic matters that are Division 22 complaints (*see* Section II(C)(i)) subject to the Division 22 complaint procedures herein vs all other types of District complaints (*see* Section II(B)). The latter - non-Division 22 complaints - are subject to specific complaint procedures governed by state or federal laws and/or by PPS Administrative Directives.[1]

Second, this revision removes the confusing use of the word "formal" to describe Division 22 complaints. We found that complainants frequently use the word "formal" to refer to written complaints submitted through the Uniform Complaint Form, regardless of type of complaint. To avoid confusion, we recommend removing the word "formal" as a descriptor for Division 22 complaints. This change has no effect on the complaint policy or the processing of Division 22 complaints or other types of complaints.

Third, we updated links, form names, contact information, and position titles.

Finally, we updated formatting and language usage (*e.g.*, using "PPS" instead of "District," "will" instead of "shall") to ensure alignment with other recent policy and administrative directive updates.

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[1] See, e.g., 4.30.063-AD (Title IX Sexual Harassment) for PPS's complaint procedure aligned with federal Title IX regulations; 4.30.062-AD (Harassment, Intimidation, Bullying and Cyberbulling Procedures and Prevention) for PPS's complaint procedure pursuant to ORS 339.356; and 4.30.071-AD (Bias Incident Complaint Procedure) for PPS's complaint procedure required by Oregon's Every Student Belongs law prohibiting discrimination, harrassment, and bias incidents in education.

STAFF RECOMMENDATION

We recommend that the revised Complaint Policy 4.50-030-P be adopted as soon as possible to ensure alignment with applicable law and ODE guidance.

ATTACHMENTS

A. Redline of 4.50.030-P
B. Clean copy of revised 4.50.030-P